

25STCV36273 25STCV36273

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV36273 Hearing Date: August 28, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 71

TENTATIVE RULING

JAMES CAMPER,

vs.

JAMES GLASS

& ASSOCIATES SECURITY SERVICES INC, et al.

Case No.:

25STCV36273

Hearing Date: August 28, 2026

Pro per Plaintiff James Camper's unopposed motion to strike
pro per Defendant James Glass & Associates Security Service Inc.'s
Answer is granted with 20 days leave to amend and to retain counsel.

Pro per Plaintiff James Camper ("Camper") ("Plaintiff") moves unopposed to strike pro per Defendant James Glass & Associates Security Service Inc.'s ("Security

Service") Answer. (Notice MTS;

C.C.P. §§412.20, 431.30, 585; CRC, Rules 3.110, 3.510(a).)

Meet and Confer

Before filing a motion to strike, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the motion. (C.C.P. §435.5(a).)

The moving party shall file and serve with the motion to strike a declaration stating either of the following: (A) The means by which the moving party met and conferred with the party who filed the pleading subject to motion, and that the parties did not reach an agreement resolving the objections raised in the motion to strike. (B) That the party who filed the pleading subject to motion failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith. (C.C.P. §435.41(a)(3).)

Plaintiff failed to file a meet and confer declaration in violation of C.C.P. §435.41(a)(3).

However, failure to sufficiently meet and confer is not a ground to grant or deny the motion to strike. (C.C.P. §435.5(a)(4).) Therefore, the Court will consider Plaintiff's motion to strike.

Procedural Background

Plaintiff filed his operative Complaint on December 12, 2025 against Defendant alleging a single cause of action for waiting time penalties for failure to pay final wages.

On February 4, 2026, Defendant filed a response to Plaintiff's claims.

Plaintiff filed the instant motion to strike on May 21, 2026. As of the date of this hearing no opposition has been filed.

Legal Standard

C.C.P. §436 provides that the Court may, upon a motion made pursuant to C.C.P. §435, or at any time within its discretion and upon terms it deems proper, “strike out any irrelevant, false, or improper matter inserted in any pleading” or any pleading or part thereof “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (C.C.P. §436.)

A plaintiff has only 10 days after service of an answer to file a demur to the answer. A motion to strike an answer may be brought “within the time allowed to respond to a pleading.” (C.C.P. §435(b)(1)). Presumably, because a motion to strike and a demurrer must be brought at the same time, a motion to strike must be filed within 10 days after service of the answer. (C.C.P. §435(b); CRC 3.1322(b).)

Summary of Motion

Plaintiff moves to strike Defendant’s Answer on the basis that it was untimely, that Defendant did not serve Plaintiff with its Answer, and Defendant’s Answer is not in alignment with state law. (MTS, pgs. 3-5.)

Discussion

Plaintiff’s

motion to strike Answering Defendants’ Answer is granted.

A corporation’s capacity to maintain a legal action and to be sued derives from the rule that a corporation has all of the powers of a natural person in carrying out its business. (Corp. Code §§18, 207; C.C.P. §17 [stating “person” includes corporation].)

One power that a natural person enjoys but that a corporation does not is the right of self-representation in court. With the sole exception of small claims court, a corporation cannot act in propria persona in state courts but must act through licensed attorneys. (Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal. 3d 724; Thomas G. Ferruzzo, Inc. v. Superior Court (1980) 104 Cal.App.3d 501; Gutierrez v. G & M Oil Co., Inc. (2010) 184 Cal. App. 4th 551.)

Here,

Defendant is a corporation and cannot be self-represented. Defendant’s Answer was filed in pro per; Defendant’s Answer must be stricken as not drawn or filed in

conformity with the laws of this state, a court rule, or an order of the court. Defendant must retain counsel in order to file a Code-compliant Answer in the instant case.

Accordingly,

Plaintiff's motion to strike Defendant's Answer is granted with 20 days leave to amend.

Conclusion

Plaintiff's unopposed motion to strike is granted with 20 days leave to amend and to retain counsel.

Moving Party to give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court